

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUPP033684: JANE DOE vs RANCHO SIMI RECREATION AND PARK
DISTRICT, et al.**

06/30/2026 in Department 21

**Motion to Compel Deposition Responses from the Person Most Knowledgeable of
Defendant and Request for Sanctions**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Compel Further Deposition Responses from the Person Most Knowledgeable of Defendant RSRPD and Request for Sanctions in the Amount of \$3,500 (*Opposed*)

Tentative Ruling: GRANT in part and DENY in part.

Plaintiff’s Motion to Compel Further Deposition Responses from the Person Most Knowledgeable of Defendant RSRPD and Request for Sanctions in the Amount of \$3,500 is GRANTED in part and DENIED in part.

Plaintiff’s motion to compel is GRANTED as to question nos. 1-8, and 10-12. The witness is ordered to answer deposition questions nos. 1-8, 10-12. “Beyond the scope of the noticed deposition topics” is not a recognized objection in California. And even if it were, the information sought by these 11 questions does not exceed the scope of the topics provided in the 40 noticed deposition topics.

Plaintiff’s motion to compel is GRANTED in PART as to question no. 9. The witness is ordered to answer question no. 9 either in the affirmative or the negative. The witness is ordered to answer this question either in the affirmative or the negative. If the answer is in the negative, no further questions on this topic shall be permitted. If the answer is in the affirmative, to the extent the witness has any specifics based on observation of events or personal knowledge, not based on any information contained within education record or disciplinary record, the witness is instructed to respond. The witness shall not disclose any details or information contained within

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the student's "education records" or disciplinary file absent notification to the student's parent with sufficient time to allow the parent to seek protective action should they wish to do so.

Plaintiff's motion to compel further responses from the witness as to question no. 13 is DENIED.

The Court finds Defendant acted largely without justification and awards sanctions to Plaintiff and against Defendant and Defendant's counsel jointly and severally in the amount of \$2,975.00 payable within 20 days after service of notice of this ruling.

Counsel for Plaintiff is ordered to give notice of the Court's ruling.

Background: This negligence action arises from the alleged sexual abuse of Plaintiff (who was 5 years old at the time) by a boy (who was 11 years old at the time), during the Garden Grove Elementary After School Club ("ASC") administered by Defendant Rancho Simi Recreation and Park District ("RSRPD") on the premises owned by Defendant Simi Valley Unified School District ("District"). According to Plaintiff, witnesses have disclosed that the boy who assaulted her ("I.D.") had a propensity to hang around young girls and touch them.

On November 12, 2025, Plaintiff served a Notice of Taking Deposition of Defendant RSRPD's Person Most Knowledgeable scheduled for December 16, 2025 which included 40 noticed deposition topics.

On December 16, 2025, Defendant RSRPD served an Objection to the Notice of Deposition of the PMK of Defendant RSRPD. Defendant objected to PMK topic numbers 4-7, 9, 14-18, 20, 22, 25-26, 29, 31, and 36-39 on the basis the topic was either overly broad as to time, would infringe on the privacy rights of third parties, protected by the attorney-client privilege, or vague and ambiguous. Defendant objected to Requests for Production of Documents Nos. 6-10 on the grounds of attorney-client or work product privilege, privacy, and overbroad as to time.

That same day, on December 16, 2025, Plaintiff conducted the deposition of Defendant RSRPD's Person Most Knowledgeable, Danielle June.

During the deposition, counsel for RSRPD, Dennis Walsh, instructed Ms. June not to answer several questions based on the grounds the question exceeded the scope of the noticed deposition category, privacy, The Family Educational Rights and Privacy Act ("FERPA") of 1974, and attorney-client privileged communications.

Discussion:

A. Timing of motion

Under California law, the deadline for a party to file a motion to compel further responses after a deponent refuses to answer questions at a deposition is governed by CCP § 2025.480. Specifically, the motion must be made no later than 60 days after the completion of the record of the deposition. (CCP § 2025.480(b).)

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Here, the Deposition was conducted on December 16, 2025; the stenographer certification is dated December 31, 2025. This Motion to Compel was served on May 1, 2026, and filed on May 7, 2026, what appears well beyond the 60-day deadline.

Defendant does not appear to argue in any of the responses or supplemental declarations that 60-day rule should *strictly* apply here, meaning the due date was March 1, 2026 (December 31, 2025 + 60 days=March 1, 2026). Rather, both parties appear to acknowledge having mutually agreed to extend the time to file this motion to May 5, 2026.

Plaintiff served Notice of the Motion on May 1, 2026 and made a good faith attempt to file with the Court that same day. The Court's rejection notice was not transmitted to Plaintiff's counsel until after the March 5, 2026 deadline had past, and Plaintiff's counsel promptly refiled the motion. The Court finds the parties have mutually agreed to extend the 60-day deadline, and that the two-day delay in filing was due a clerical error. Accordingly, the Court exercises its discretion to overlook the delay due to the clerical error and proceeds to rule on the merits.

B. Analysis

1 . Questions and objections.

a. Defendant's "Beyond the Scope" objections to questions 1-8, 10-12.

Question No. 1: Q: In terms of the lawsuit, outside of the presence of counsel can you tell me the person that you discussed this lawsuit with? [June Depo. 14:11-17]

MR. WALSH: Let me interpose an objection. It exceeds the permissible scope of the PMQ notice, and I'll instruct her not to answer. [June Depo. 14:14-16]

Plaintiff's motion is GRANTED as to this question. This is not really a question about the substantive topics listed in the PMQ notice, although it arguably falls within gambit of the policies and practices for sharing information, reporting conduct, and/or investigating misconduct. This would also appear to fall under Topic 36, any communications between Rancho Simi Recreation and Park District's employees regarding Plaintiff's complaint of I. D. sexually assaulting her. Regardless, this is a foundational discovery question directed at the witness' preparation and communications regarding the litigation. That is permissible.

Defense counsel did NOT invoke attorney-client privilege in instructing his witness not to answer. But that objection always applies. To avoid possible implication of attorney-client privilege and attorney work product if Plaintiff delves into the substance of counsel's communications or litigation strategy, the witness may be instructed only as to the witness's preparation and communications regarding the litigation not including privileged discussions with counsel.

Question No. 2: Q: Okay. Is there any other reason that clock-in and clock-out information was sought, other than trying to determine the number of staff that were on site on February 7th,

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2024? [June Depo. 47:10-13]

MR. WALSH: I will allow her to answer that question but clock-in and clock-out information is not one of the categories that was covered. But go ahead, Miss June, you can answer the question. [June Depo. 47:14-17]

A: Yes. [June Depo. 47:18]

Q: Okay. So was there any other reason – [June Depo. 47:20]

A: Yes. [June Depo. 47:21]

Q: - for that ratio? What is that reason? [June Depo. 47:22-23]

MR. WALSH: You can answer. [June Depo 47:24]

A: There were concerns that Sophie was not clocking out at her new location and going over to Garden Grove after she was no longer the site director. So ADP files were pulled to cross-reference. [June Depo. 47:25-48:3]

Q: And what was determined as a result of those efforts? [June Depo. 48:5-6]

MR. WALSH: Let me interject an objection. That is not covered by the PMK notice. I've allowed you some leniency there, Counsel, but pulling documents to see where Sophie Klepper is, is not part of this deposition. So I'll instruct her not to answer anything further along those lines as exceeding the scope of the PMK notice. [June Depo. 48:8-13]

Plaintiff's motion is GRANTED as to this question. These are essentially questions about why RSRPD obtained or reviewed timekeeping records; whether there were other purposes for obtaining those records; and staffing and supervision issues on the date of the alleged incident.

Clock-in information of the site Director on the day of the alleged incident falls under Topic 26. As to why RSRPD might want these records, this arguably would fall under Topic 5 (Policies and practices regarding supervision of students within its care), Topic 7 (Complaints against a counselor for failing to follow policies and procedures), Topic 23 (The ratio of counselors to students required by RSRPD), Topic 24 (The ratio of counselors to students at the Garden Grove After School Club at the time of the alleged assault), and Topic 25 (Complaints regarding the ratio of students to counselors at the Garden Grove After School Club).

Question No. 3: Q: Okay. In your job, do you have the ability to terminate any employees? [June Depo. 56:9-11]

A: I do. [June Depo. 56:11]

Q: Okay. Which employees are you allowed to terminate? [June Depo. 56:12-13]

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A: I guess any of my subordinates if it's a full time – any time we do a termination though, I involve my director of recreation, but I would be allowed to pursue termination for any employee under my direction. [June Depo. 56:14-17]

Q: Okay. And when it comes to terminations, even if you're consulting your supervisor, is that something that you in your experience have seen that more often than not, if you are pursuing the termination, that the termination will be effectuated and the supervisor will sign off? [June Depo. 56:18-22]

MR. WALSH: Let me interpose an objection. It exceeds the permissible scope of the PMK.

Plaintiff's motion is GRANTED as to this question. These are standard scope/authority questions about the witness' role and decision-making power. They are foundational background questions about authority.

This line of questioning falls under: Topic 1 (Policies and practices regarding student misconduct, to the extent termination relates to enforcement structure), Topic 2 (Student safety policies and practices via staffing enforcement), Topic 18 (policies and procedures employees supervising minors were required to follow, authority structure and enforcement responsibilities), Topic 37 (Decisions to suspend/expel a student analogous authority structure, though focused on students rather than employees), and Topic 40 (Departmental hierarchy within RSRPD (relevant to authority levels).

Plaintiff's counsel correctly states : “Moreover, June's ability to hire and terminate employees necessarily relates to the numerous PMK topics regarding RSRPD's policies and practices governing the ASC such as those encompassing: student misconduct (Topic 1), ensuring student safety (Topic 2), complaints of student misconduct (Topic 4), supervision of students within its care (Topic 5), conducting investigations into complaints of misconduct (Topic 10), reporting to law enforcement complaints of sexual misconduct (Topic 11), reporting and investigating misconduct by third parties (Topics 14 and 15), remedying misconduct by third parties (Topic 16), and procedures employees supervising minors were required to follow (Topic 18).” (Separate Statement, p. 21).

Question No. 4: Q. Miss June, do you have authority to hire anybody? [June Depo. 61:10]

MR. WALSH: Objection. Exceeds the permissible scope of the pleading. I'll instruct her not to answer. And exceeds the scope of the PMK. [June Depo. 61:11-13]

Plaintiff's motion is GRANTED as to this question. This is another general role/authority inquiry. It is not tied to a specific incident, but it does go to organizational structure and the witness's scope of decision-making. This question falls under Topic 40 (departmental hierarchy within RSRPD (primary fit), Topic 18 (policies/procedures employees supervising minors were required to follow (to the extent it includes hiring authority within supervisory structure), and Topics 2 and 5 (supervision and safety practices (only indirectly, as staffing decisions affect supervision)).

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Plaintiff's counsel again correctly points out: "PMK for category number 40: "The departmental hierarchy within Rancho Simi Recreation and Park District". Moreover, June's ability to hire and terminate employees necessarily relates to the numerous PMK topics regarding RSRPD's policies and practices governing the ASC such as those encompassing: student misconduct (Topic 1), ensuring student safety (Topic 2), complaints of student misconduct (Topic 4), supervision of students within its care (Topic 5), conducting investigations into complaints of misconduct (Topic 10), reporting to law enforcement complaints of sexual misconduct (Topic 11), reporting and investigating misconduct by third parties (Topics 14 and 15), remedying misconduct by third parties (Topic 16), and procedures employees supervising minors were required to follow (Topic 18)." (Separate Statement, p. 23).

Question No. 5: Q: It's okay. I'm trying to find out if there is any document which says Parks has the authority to remove any student from its program for any reason it deems sufficient, something to that effect. Does that wording exist? [June Depo. 80:25-81:3]

A: Our program waiver would indicate that. [June Depo. 81:4]

Q: The program waiver. Can you describe what that is and who receives that? [June Depo. 81:5-6]

A: It's a program waiver that is sent for any program that anybody participates within the district. It's not isolated to the After School Club. They sign that waiver when they register for the program. [June Depo. 81:7-10]

Q: Okay. Do you have to document your findings in any sort of report indicating the reasons why a particular student was removed from a program? [June Depo. 81:11-13]

A: I traditionally will send an email to my supervisor documenting kind of a collective evidence, and then include any behavior reports or things that were collected that led me to a decision. [June Depo. 81:14-17]

Q: Okay. And in the case of the ongoing case here, did you ever prepare an email which outlined the reasons why he was removed, whether it be permanent or conditional, from the Before and After School Club? [June Depo. 81:18-21]

MR. WALSH: Let me interpose an objection. It exceeds the scope of the PMK, and I'll instruct her not to answer. [June Depo. 81:22-24]

Plaintiff's motion is GRANTED as to this question. These questions relate to Topic 1 (policies and practices regarding student misconduct), Topic 2 (policies and practices to ensure student safety), Topic 16 (policies and procedures related to remedying misconduct by third parties), Topic 17 (policies and procedures related to prevention of sexual misconduct), Topic 18 (policies and procedures employees supervising minors were required to follow), and Topic 37 (any decision to expel or suspend I. D. at any time from any After School Club or RSRPD camp).

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Question No. 6: Q. In your experience when you make a recommendation that someone should be removed from the program, is it followed more often than not? [June Depo. 84:6-8]

A. Yes. [June Depo. 84:9]

MR. WALSH: Let me interpose an objection. It assumes facts not in evidence, but go ahead. [June Depo. 84:10-11]

A: Sorry. Yes. [June Depo. 84:12]

Q: Let me ask you this: Outside of this case, has anyone ever in your experience been removed from the After School Clubs, or any other program of Parks, based upon allegations that they abused another student? [June Depo. 84:14-17]

MR. WALSH: Let me interpose an objection. It exceeds the permissible scope of the PMK and might also invade third-party privacy rights of an individual to even disclose that information. I'm going to have to instruct her not to answer. [June Depo. 84:18-22]

Plaintiff's motion is GRANTED as to this question. These questions are directed at the process and authority for removing students from the program, how RSRPD implements its policies in practice; and whether recommendations to remove students are generally accepted. This falls under Topic 37 (any decision to expel or suspend [I.D.] at any time from any After School Club or [RSRPD] camp), Topic 1 (RSRPD's policies and practices regarding student misconduct), Topic 2 (policies and practices to ensure student safety), Topic 16 (policies and procedures related to remedying misconduct by third parties), Topic 18 (policies and procedures employees supervising minors were required to follow), and Topic 37 (any decision to expel or suspend I. D..)

Question No. 7. Q: Okay. Is it fair to say that one of the purposes of the cell phone policy is if someone is on their phone attending to personal matters, that takes their eyes off of watching children; is that right? [June Depo. 101:20-23]

A: Yes. That would be the logic behind the notation in the procedural manual. [June Depo. 101:24-25]

Q: Okay. And the other logic is, of course, you don't want staff filming students without permission, right? [June Depo. 102:1-2]

A: Correct. [June Depo. 102:3]

Q: So there is a dual purpose in the policy, correct? [June Depo. 102:4]

A: Yes. [June Depo. 102:5]

Q: Okay. At the Garden Grove After School program between 2022 and 2025, was anyone ever spoken to about being on their cell phone as a staff member while the

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program was being conducted; in other words, while the Before and After School Program was being run? [June Depo. 102:8-12]

MR. WALSH: Let me interpose an objection that it exceeds admissible scope of the PMK notice. [June Depo. 102:14-15]

MR. MORRISON: There is actually a specific topic on it. [June Depo. 102:16-17]

MR. WALSH: Which one is that, Counsel? [June Depo. 102:18]

MR. MORRISON: Number 5 regards supervision. [June Depo. 102:19]

MR WALSH: Well, that doesn't talk about cell phones, and you're asking a fact question. You are not asking a category question now. [June Depo. 102:20-22]

MR. MORRISON: It – also I have a category about complaints about violations of policies by members at the Garden Grove After School Club as well. [June Depo. 102:23-25]

Plaintiff's motion is GRANTED as to this question. These are fundamental questions about the purpose of a supervision policy and how it relates to child safety. They fall under Topic 2 (RSRPD's policies and practices in place to ensure student safety), Topic 5 (RSRPD's policies and practices regarding supervision of students within its care), Topic 18 (policies and procedures employees in charge of supervising minors were required to follow).

Question No. 8. Q: Are you aware of any reports from any individual in the year 2023 to 2024 at the Garden Grove After School Program alleging that Staff was on their phone during the time they should have been watching and caring for students? [June Depo. 106:11-14]

MR. WALSH: Same objection. Same instruction. [June Depo. 106:16]

Plaintiff's motion is GRANTED as to this question. The question is not about a single incident tied to Plaintiff. It is about pattern complaints or reports of inattentive supervision (phone use). That squarely sits inside the broader "student safety / supervision / complaints / investigations" categories of Topics 2, 4, 5, and 10.

Question No. 10: Q: Did you learn at some point in time that an allegation was being made about a sexual assault that took place, or sexual battery, on February 7, 2024, at the Garden Grove After School Club? [June Depo. 140:11-14]

MR. WALSH: Let me interpose an objection, Counsel. It exceeds the initial scope of the PMK notice. So to the extent you're going to ask her questions, fact questions about her knowledge regarding the particular incident, yes, I would have to instruct her not to answer at this time. [June Depo. 140:15-19]

Plaintiff's motion is GRANTED as to this question. This question relates directly to multiple core PMQ topics because it concerns notice, awareness, and internal handling of the underlying incident. This question goes to the core subject matter of the litigation: *knowledge of the alleged incident and the organization's response to it*. Topic 4 (complaints of student misconduct at After School Clubs and camps, awareness of complaints or allegations), Topic 10 (investigations into complaints of misconduct, including sexual assault, when and how RSRPD became aware of and handled allegations), Topic 14 (reporting misconduct by third parties toward students, how allegations are reported and escalated internally), and Topic 15 (investigating misconduct by third parties toward students, response once an allegation is received).

Question No. 11: Q: Is a report of sexual battery at one of the After School Clubs the type of incident which mandates preparation of a Capri report? [June Depo. 141:14-16]

A: A site director would not be guided to do a Capri report on that instant. [June Depo. 141:17-18]

Q: Okay. Would anyone be directed to do a Capri report in response to an allegation that a participant was sexually assaulted at one of the After School Clubs in 2023 and 2024? [June Depo. 141:19-21]

A: They would not be required. [June Depo. 141:22]

Q: What are the types of incidents that should be captured in a Capri report? And I know you indicated where insurance is involved, but can you provide examples of insurance-type events? [June Depo. 141:23-142:1]

MR. WALSH: Hold on. Let me interpose an objection. It exceeds the permissible scope of the PMK notice, and it might also call for attorney work product as well. [June Depo. 142:2-4]

MR. MORRISON: Are you instructing her not to answer? [June Depo. 142:6]

MR. WALSH: I am. [June Depo. 142: 7]

MR. MORRISON: Okay. Again, I disagree but we'll just move on and not ask the question. [June Depo. 142:8-9]

Plaintiff's motion is GRANTED as to this question. These questions ask about RSRPD's policies and procedures for responding to and documenting reports of sexual misconduct. It is not asking about the substance of a particular Capri report, but rather whether the organization's policies require one under certain circumstances. They fall under Topic 4 (RSRPD's policies and practices regarding complaints of student misconduct), Topic 10 (Policies and practices regarding conducting investigations into complaints of misconduct, including sexual assault and inappropriate touching), Topic 14 (policies and procedures related to reporting misconduct by third parties toward students, Topic 15 (policies and procedures related to investigating misconduct by third parties toward students), and Topic 21 (policies and procedures for

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requesting and preserving all evidence related to a report of sexual misconduct, sexual assault, battery, or assault).

Question No. 12: Q: Are you aware of any issues with respect to Sophie Klepper, when she was the director in Garden Grove, not utilizing behavior reports appropriately? [June Depo. 145:7-9]

MR. WALSH: Objection. Exceeds the permissible scope of the PMK notice. Also potentially invades her right to privacy. [June Depo. 145:11-13]

MR. MORRISON: Is that an instruction not to answer? [June Depo. 145:14]

MR. WALSH: It is. [June Depo. 145:15]

Plaintiff's motion is GRANTED as to this question. Questions pertaining to possible complaints that Sophie failed to report, maintain, or act upon falls under Topic 7 (complaints made against any counselor at the Garden Grove After School Club for failing to follow policies and procedures), Topic 27 (Sophie Klepper's complaints lodged while she was an employee of RSRPD), and Topic 28 (Sophie Klepper's comments, notes, memorandums, or complaints regarding behavior of IJ, to the extent "behavior reports" relate to documenting student behavior).

b. Defendant's Privacy objection to question 9.

Question No. 9: Miss June, are you aware of any behavioral issues prior to February 7th, 2024, involving [I. D.] and touching other students? [June Depo. 137:24-138:1]

MR. WALSH: Let me interpose an objection. As we indicated earlier, that would violate his right to privacy under the California constitution as well as FERPA. And absent a Court order, I have to instruct her not to answer. [June Depo. 138:2-5]

MR. MORRISON: Am I correct that any questions regarding attempts to identify behavioral issues from I.D. prior to February 7, 2024, at this time will be met with an instruction not to answer? [June Depo. 138:7-10]

MR. WALSH: You are correct. Absent a Court order, yes. [June Depo. 138:11-12]

MR. MORRISON: Okay. There were documents produced in discovery which reference efforts to locate previous issues with I.D. Am I allowed to ask questions on that or would I get the same instruction? [June Depo. 138:13-16]

MR. WALSH: I don't understand what you mean. Maybe clarify for me. [June Depo. 138:17-18]

MR. MORRISON: There is an email to Willem Shuster asking what he knows about past behavioral issues with I.D., and he reports back in a response to Miss June what he

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knows. Is that something I can't question? That was produced in a document. [June Depo. 138:19-23]

MR. WALSH: I would have to take that position at this point in time as well. [June Depo. 138:24-25]

California Constitution: Questions about a minor's prior behavioral issues clearly implicate that minor's constitutional right to privacy. A minor possesses a legally protected constitutional right to privacy regarding sensitive, personal behavioral history. (Cal Const, Art. I § 1, *Hooser v. Superior Court*, 84 Cal. App. 4th 997 (2000)).

At the same time, whether this particular minor had prior behavioral issues, and if so, whether Defendant RSRPD was aware of them is critical to Plaintiff's case (and Defendant's defense), and only Defendant RSRPD has access to this critical information.

Does the minor's privacy automatically outweigh the Plaintiff's right to obtain discovery that is at the very least reasonably calculated to lead to the discovery of admissible evidence?

California courts have addressed this question and do not automatically bar discovery. Rather, "[i]n determining whether disclosure is required, the court must indulge in a 'careful balancing' of the right of a civil litigant to discover relevant facts, on the one hand, and the right of the third parties to maintain reasonable privacy regarding their sensitive personal affairs, on the other. [citations]. The court must consider the purpose of the information sought, the effect that disclosure will have on the affected persons and parties, the nature of the objections urged by the party resisting disclosure and availability of alternative, less intrusive means for obtaining the requested information." (*Hooser v. Superior Court* (2000) 84 Cal.App.4th 997, 1004; *SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 754-755.)

In conducting this balancing, courts consider the requesting party's need for the information, its relevance to the claims, whether the information is available through less intrusive means, and whether confidentiality protections can adequately safeguard the minor's privacy. *Ombudsman Services of Northern California v. Superior Court* (2007) 154 Cal.App.4th 1233; *Alch v. Superior Court* (2008) 165 Cal.App.4th 1412.

FERPA: An objection based strictly on FERPA (20 U.S.C. § 1232g) does not provide a valid basis to block deposition questions regarding a student's prior behavioral history. FERPA restricts educational agencies or institutions from disclosing personally identifiable information contained within a student's "education records" without parental consent. (20 USC § 1232g.) Education records are defined as records, files, documents, and other physical or electronic materials that contain information directly related to a student and are maintained by an educational agency or institution. (*Rim of the World Unified School Dist. v. Superior Court* (2002) 104 Cal. App. 4th 1393, 1397.)

At a deposition, FERPA does not apply to block oral testimonies regarding a witness's firsthand personal observations or knowledge of a student's behavior, as such recollections are not "records maintained by an educational agency." Even when written disciplinary or education

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records are subpoenaed, FERPA does not create an evidentiary privilege; rather, it permits educational institutions to disclose such records to comply with a lawfully issued subpoena or judicial order, provided the institution makes a reasonable effort to notify the parent or student in advance so they may seek protective action. However, school districts generally cannot satisfy FERPA's strictures in civil discovery simply by redacting names, as specific details of a student's behavior are still considered directly related to the student under FERPA. (*Rim of the World Unified School Dist. v. Superior Court*, *supra* at 1399.)

Plaintiff's motion as to Question No. 9 is GRANTED in PART and DENIED in PART.

The question, "are you aware of any behavioral issues prior to February 7th, 2024, involving [I. D.] and touching other students?" is a yes-or-no question. The witness is ordered to answer this question either in the affirmative or the negative. If the answer is in the negative, no further questions on this topic shall be permitted. If the answer is in the affirmative, to the extent the witness has any specifics based on observation of events or personal knowledge, not based on any information contained within education record or disciplinary record, the witness is instructed to respond. The witness shall not disclose any details or information contained within the student's "education records" or disciplinary file absent notification to the student's parent with sufficient time to allow the parent to seek protective action should they wish to do so.

c. Defendant's Attorney-client privilege objection to question 13.

Question No. 13: So your testimony is that you spoke to Richard Lemmo, who informed you that he indicated he trained Miss Klepper before she started as site director at the Garden Grove After School program. She was trained on how to fill out a behavior report on the form that the Parks utilizes? [June Depo. 154:12-16]

A: Yes. [June Depo. 154:17]

Q: Okay. And when did that conversation with Mr. Lemmo take place? [June Depo. 154:18-19]

A: I'm not sure of the timeline. [June Depo. 154: 20]

Q: Did it happen in the last two months? [June Depo. 154:21]

A: Yes. [June Depo. 154:22]

Q: Okay. What was the reason for this conversation in the last two months? [June Depo. 154:23-24]

MR. WALSH: Interpose an objection. It invades the attorney-client privilege and work product privilege. Instruct her not to answer. [June Depo. 154:25-155:3]

Q: Did you have this conversation with Mr. Lemmo in the presence of counsel. [June Depo. 155:5-6]

MR. WALSH: You can answer that question. [June Depo. 155:7]

A: No. [June Depo. 155:8]

Q: Since it was outside the presence of your counsel, what was the reason you had this conversation? [June Depo. 155:11-12]

MR. WALSH: Same objection. Same instruction. [June Depo. 155:14]

Plaintiff's motion as to Question No. 13 is DENIED. Defense counsel's objection is well taken. The reason why this exchange occurred appears related to the instant litigation and was likely prompted by counsel to uncover facts necessary to further the defense's legal strategy. Plaintiff's counsel's primary argument here is based simply on the presumption that if a conversation takes place without a lawyer present, it is inherently unprivileged. California law does not support this presumption. Nor does there appear to be an especially overriding "need to know" on Plaintiff's part as to the witnesses' motivations in investigating Ms. Klepper's training relating to behavior reports.

3. Sanctions.

Sanctions are appropriate in this case pursuant to Cal Code Civ Proc § 2025.480. Defense counsel's "beyond the scope of the noticed deposition topics" objections to questions 1-8 and 10-12 is not a recognized objection in California, and even if it were, the questions at issue here all fall within at least one of the 40 noticed deposition topics. Defense counsel acted without substantial justification in ordering the witness not to answer a vast majority of the questions in dispute here, prompting largely unnecessary, timely and expensive motion practice. For this reason, sanctions against Defendant and its Counsel Dennis J. Walsh are warranted and awarded in part, in the amount of \$2,975 (8.5 hours x \$350/hour = \$2,975).